MARINA MARIA GROVE

AND

BOTHWELL CHIBANDA

IN THE HIGH COURT OF ZIMBABWE
NDUNA J
BULAWAYO 31 OCTOBER AND 12 NOVEMBER 2025

Court application

K Mambara, for the applicant
B. A Chifamba, for the respondent

NDUNA J: This is an application for a final interdict in which the applicant, *Marina Maria Grove*, seeks an order restraining the respondent, *Bothwell Chibanda*, from interfering with her peaceful use, occupation, and development of an immovable property situated in Kwekwe. The respondent opposes the application, arguing that there exist material disputes of fact incapable of resolution on the papers, and further contends that his conduct has been limited to asserting boundary concerns lawfully through correspondence.

FACTUAL BACKGROUND

The respondent was originally the owner of the property and sold it to the Applicant. The respondent's grievance centers on the alleged relocation of boundary beacons marking the subdivided stand. He contends that the beacons were moved from their originally agreed positions without his knowledge or consent, and that the final survey diagram used for the transfer differs from the one he initially approved and signed.

The applicant denies any manipulation or relocation of beacons. She asserts that the respondent was fully involved in the subdivision and transfer process, and that the final diagram was properly verified and registered with the Surveyor-General. She maintains that the issue of

beacons is a self-created dispute by the respondent, arising only after transfer had long been completed.

Following the emergence of the beacon dispute, a meeting was held on 24 May 2024 at the offices of Wilmot & Bennett, attended by both parties, but no resolution was reached. Subsequently, in May 2025, the respondent, through his new legal practitioners Mkushi & Maupa, wrote letters to the applicant's lawyers questioning the authenticity of the title and requesting a halt to construction pending resolution of the alleged boundary error. Wilmot & Bennett responded, refuting the allegations of irregularity or fraud and confirming that the respondent had personally instructed, participated in, and consented to the transfer process.

The applicant thereafter commenced construction on the property. She alleges that on 17 June 2025, the respondent sent individuals who destroyed parts of her foundation and that scrap vehicles were placed on her stand to obstruct progress. These allegations are supported by a photograph attached as *Annexure D*. The applicant further claims that the respondent has made threatening movements and utterances around the property, causing fear among her builders and halting construction. She reported an incident of malicious damage to property to the Zimbabwe Republic Police.

Submissions by the Respondent

Mr. Chifamba, for the respondent, raised a single preliminary issue relating to the existence of a material dispute of fact. He submitted that such dispute is evident from the very facts giving rise to the cause of action. The applicant, through her papers, contends that the respondent has been disturbing or interfering with her ownership and business operations at the property in question. The respondent, however, maintains that his only concern relates to errors in the placement of the beacons or coordinates on the subdivided stand.

To support his contention, *Mr. Chifamba* referred to annexures attached to the applicant's application notably the surveyor's report (Annexure *C2*, page 22 of the record) and a letter from the Respondent's legal practitioners addressed to the Applicant's lawyers (Annexure *C3*, page 25 of the record). The letter invited the Applicant to cooperate in resolving the beacon placement issue. Counsel submitted that there is no evidence before the Court showing that the respondent

interfered with the applicant's operations on the property. Instead, the documentary evidence reflects that the dispute concerns boundary coordinates following a sale transaction between the parties.

Submissions by the Applicant

In response, *Mr. Mambara* for the Applicant argued that no material dispute of fact exists. He referred the Court to paragraphs 13 and 14 of the Applicant's Heads of Argument, emphasizing that the issue of beacons raised by the Respondent is a self-created one. The applicant, he submitted, is the lawful owner of the property in dispute, holding a valid title deed issued in 2020, to which a survey diagram is annexed as *Annexure A*. The authenticity of the title deed has never been challenged by the respondent, thereby confirming that the Applicant has a clear and real right over the property and was entitled to bring this application.

According to counsel, the respondent only began raising the beacon and peg issue on 7 May 2025, as evidenced by *Annexure C3*. The applicant's former legal practitioners duly responded, as shown in *Annexure C4*, clarifying that the respondent had fully cooperated in the processes leading to the issuance of the title deed. Counsel submitted that the respondent's sudden concern with the beacons appears to stem from buyer's remorse following the concluded sale.

Addressing the allegation of hearsay, *Mr. Mambara* submitted that the applicant's affidavit does not rely on hearsay evidence. The Applicant deposed to facts within her personal knowledge, and the attached photograph (*Annexure D*) merely corroborates her averments that the Respondent and his associates interfered with her building works. He maintained that the Respondent's conduct, particularly his persistent attempts to reopen issues already settled by transfer, shows a propensity to disturb the Applicant's quiet enjoyment of her property.

In closing, *Mr. Mambara* submitted that there are no genuine disputes of fact warranting the dismissal of the application and urged the Court to determine the matter on its merits.

SUBMISSIONS ON THE MERITS

The applicant alleges that the respondent disturbed her operations on Stand No. 9151 Kwekwe, of Stand No. 2784 Kwekwe Township, particularly on or about 17 June 2025. The requirements for an interdict, he submitted, are well-established:

1. The existence of a clear right;
2. An actual or reasonably apprehended injury; and
3. The absence of an adequate alternative remedy.

Counsel submitted that the applicant has met all these requirements. Her clear right is established by the title deed, which the respondent does not dispute. The issue of beacons is a red herring created by the respondent. On the injury element, the applicant's affidavit and annexures demonstrate a reasonably apprehended injury given the respondent's persistence in interfering with her construction activities. Regarding the absence of alternative remedies, he submitted that this dispute could not be resolved through criminal procedure and that the Applicant properly sought relief from this Court. He thus prayed that the application be granted with costs.

In reply, *Mr. Chifamba* maintained that while ownership is not disputed, the applicant failed to establish irreparable harm or a reasonably apprehended injury. He submitted that the evidence presented being limited to agreements, correspondence, and a single unverified photograph falls short of proving any disturbance by the respondent. Furthermore, the applicant admitted to making a police report based on the same allegations but failed to disclose its outcome, suggesting that the matter may still be pending. He argued that the applicant has failed to meet the second and third requirements for an interdict and prayed that the application be dismissed with costs.

APPLICATION OF THE LAW TO THE FACTS

Whether A Material Dispute Of Fact Exists

The respondent contends that the matter cannot be determined on paper because there are alleged material disputes of fact regarding the *relocation of boundary beacons* on Stand 9151 Kwekwe Township. The court finds this argument unsustainable both in law and on the evidence presented.

In *Supa Plant Investments (Pvt) Ltd v Edgar Chidavaenzi* 2009 (2) ZLR 132 (H), MAKARAU JP (as she then was) defined a material dispute of fact as one that arises

> "when such material facts put by the applicant are disputed and traversed by the respondent in such a manner as to leave the court with no ready answer to the dispute between the parties in the absence of further evidence".

The evidence on record, particularly Annexure C2, being a letter from Baryte Surveyors to Wilmot & Bennett dated after a field survey conducted on 1–2 May 2024, confirms that all the property beacons were found in their original positions. The surveyor's findings were unequivocal he states in the letter

> "All the property beacons were found in their original positions (allowable limits) except for some beacons which were disturbed by boundary wall construction which I since replaced... the area is 3,016 square metres as stated on the Title Deed, hence no alterations in terms of property beacons are to be done unless there is a further subdivision by the property owner, Marina Maria Grove."

This report, from a registered surveyor, directly and conclusively refutes the respondent's allegation that the beacons were moved. It shows that the physical beacons correspond exactly with the coordinates and area stated in the title deed. The court is therefore left with a *ready answer* on this factual issue the beacons are where they were originally pegged, and the property remains as transferred.

The Deed of Transfer (Annexure A) cites the approved Surveyor-General's Diagram No. S.G. 223/2019. The Respondent signed the Agreement of Sale (Annexure B) and the transfer papers, which incorporated the same coordinates reflected in S.G. 223/2019. His later attempt to challenge those coordinates amounts to an afterthought. The legal principle of caveat subscriptor squarely applies.

In *Muchabaiwa v Grab Enterprises (Pvt) Ltd* 1996 (2) ZLR 691 (SC), KORSAH JA stated:

> "The general principle which applies to contracts, and commonly designated as *caveat subscriptor*, is that a party to the contract is bound by his signature, whether or not he has read or understood the contract, or the contract was signed with blank spaces later to be filled in."

Applying that principle, the respondent is bound by the documents, he executed the sale agreement and transfer deed. Both bear the same property description and coordinates as those confirmed by the surveyor and approved by the Surveyor-General. He cannot now be heard to deny what he freely signed.

There is therefore no factual uncertainty requiring viva voce evidence. The papers before the Court are complete and enable a conclusive determination of the matter.

APPLICATION ON THE MERITS

The applicant seeks a final interdict to restrain the respondent from interfering with her use and enjoyment of Stand 9151 Kwekwe Township. In *Satond Investments v Munashe Shave* HH 336-18, p 2 the Court held

> "In an application for a final interdict as the one sought by the applicant the applicant has to establish firstly a clear right, secondly an actual or a reasonably apprehended injury and, thirdly, absence of any other remedy"

Bearing in mind the requirements set out for an interdict I will consider the merits of this case.

The applicant is the registered owner of the property under a Deed of Transfer issued on 30 September 2020 (Annexure A). Ownership is not disputed. The law is clear that registration confers real rights enforceable against the world.

The respondent sold the stand, signed the transfer papers, and received full payment. Both the Agreement of Sale and the transfer documents reflect the same coordinates as those now registered. The Surveyor's Report (Annexure C2) confirms the beacons were found in their original positions, and the Surveyor-General's Diagram (S.G. 223/2019) used for registration remains valid. The applicant therefore has a clear and enforceable right.

On the second requirement of actual or reasonably apprehended injury**.** The applicant produced photographic evidence (Annexure D) showing that on 17 June 2025, persons linked to the respondent destroyed her foundation and dumped scrap cars on her property. She also reports ongoing threats and interference that halted construction. This conduct constitutes actual injury and supports a reasonable apprehension of continued harm. The respondent's denial cannot displace the objective proof of disturbance and threats.

Last but not least there must be an absence of alternative remedy for an interdict to be granted. Although a police report was made, criminal proceedings do not provide civil protection. The only adequate remedy is an interdict to prevent further interference. The applicant reported

the incident to the Zimbabwe Republic Police for malicious damage to property, but as correctly submitted, a criminal complaint addresses the public wrong, not the civil right to peaceful possession. The police process cannot ensure non-interference or restore construction progress.

Equally, the letters of demand exchanged between legal practitioners and engagement with local authorities have yielded no relief. In these circumstances, the only effective and practical remedy is a civil interdict a judicial order restraining the respondent from continuing or repeating his unlawful acts.

The court is therefore satisfied that the Applicant has no adequate alternative remedy other than the interdict she seeks.

Furthermore in *Eriken Motors (Welkom) Ltd* v *Proten Motors, Warrenton and Anor* 1973 (2) SA 685 (A) Holmes JA, dealing with the issue on how to assess the factors said the following at 691G.

> "In exercising its discretion the court weighs, inter alia, the prejudice to the applicant, if the interdict is withheld, against the prejudice to the respondent if it is granted. This is sometimes called the balance of convenience. The foregoing considerations are not individually decisive but are interrelated, for example, the stronger the prospects of success the less this need to rely on prejudice to himself. Conversely, the more the element of "some doubt; the greater the need for the other factors to favour him…"

Applying that principle, the balance of convenience overwhelmingly favours the applicant. She is a registered owner seeking only to exercise lawful rights of use and development. The respondent, having already alienated his interest through sale and transfer, stands to suffer no legitimate prejudice if restrained from unlawful interference.

Conversely, withholding the interdict would expose the applicant to continuing threats, damage, and deprivation of her property's use prejudice which is both substantial and irreparable thus, the balance of convenience decisively favours granting the interdict.

DISPOSITION

The court is satisfied that the applicant has established a clear right to peaceful possession and use of the property and that the respondent's conduct amounts to unlawful interference. The

balance of convenience favours protecting the applicant's proprietary interests, warranting the grant of a final interdict.

ORDER

1. An interdict be and is hereby granted barring the respondent and/or his agents or assignees from interfering with, disrupting, disturbing, or visiting building operations and activities on Stand 9151 Kwekwe Township of Stand 2784 Kwekwe Township situate in the District of Que-Que.
2. The respondent be and is hereby ordered to maintain peace with the Applicant's occupation and use of Stand 9151 Kwekwe Township of Stand 2784 Kwekwe Township situate in the District of Que-Que
3. The respondent shall pay costs on the ordinary scale.

Mavhiringidze & Mashanyare, applicant's legal practitioners
Mkushi and Maupa, respondent's legal practitioners